

25NWLC44555 25NWLC44555

County: los-angeles

Division: Civil Law and Motion

Department: Z

Hearing date: 2026-08-20

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The Court has read and reviewed the moving papers filed by Plaintiff in support of the Motion for Judgment on the Pleadings, including a meet and confer letter dated May 19, 2026.

The Court notes that Plaintiff has filed proof of service of this motion on Defendant at the same address Defendant listed on their Answer.

Pursuant to Cal. Evid. Code § 452 and § 453, the Court GRANTS the request for the Court to take judicial notice of:

The Complaint filed by Plaintiff on August 11, 2025;

The Order granting Plaintiff's Motion to Deem Requests for Admissions Admitted as to RFA # 1-8, entered on May 1, 2026; and

Request for admissions filed December 22, 2205, in support of Plaintiff's Motion to Deem Requests for Admissions Admitted.

The Court also takes judicial notice of:

Defendant's Answer filed on

September 19, 2025.

The Court finds the

Request for Admissions admitted cannot be reasonably controverted at this stage of the proceedings. The Request for Admissions admitted are tantamount to Defendant admitting the causes of action alleged by Plaintiff.

Defendant states

"The alleged contract is barred by the statute of limitations." in the Answer.

In determining a

Motion for Judgment on the Pleadings, all material facts alleged in the challenged pleading must be accepted as true.

(Ventura Coastal, LLC v. Occupational Safety & Health Appeals Bd.

(2020) 58 CA5th 1; Lowry V. Port San Luis Harbor Dis. (2020) 56 CA5th 211, 217.) Conclusions of law or fact,

opinions, speculation, or allegations contrary to the law or facts that are judicially noticed must not be considered.

(Bettencourt v. Hennessy Indust., Inc. (2012) 205 CA4th 1103; Stevenson

Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc. (2006)

138 CA 4th 1215. There are two ways to properly plead statute of limitations:

(1) allege facts showing that the action is barred, and indicating that the lateness of the action is being urged as a defense, and (2) plead the specific section and subdivision. (Martin v. Van Bergen (2012) 209 Cal.App.4th 84.)

Defendant neither

cited the specific statute of limitations section or pled sufficient facts.

The Plaintiff's Motion

for Judgment on the Pleadings is GRANTED as the complaint states facts sufficient to constitute a cause of action and the Answer in conjunction with the admissions deemed admitted does not state facts sufficient to constitute a defense.

The Court orders

Judgement in favor of Plaintiff for the principal sum of \$15,683.40, \$570.00 for costs, and \$800.00 for reasonable attorney's fees, for a total judgment of \$17,053.40.